Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

BANGSAMORO TRANSITION AUTHORITY
(FIRST REGULAR SESSION)

BANGSAMORO AUTONOMY ACT NO. 33

Begun and held in Cotabato City, on Thursday, the 19th of Safar 1444/15th day of September 2022.

AN ACT
EXTENDING THE AVAILABILITY OF THE GENERAL APPROPRIATIONS ACT OF THE BANGSAMORO UNTIL DECEMBER 31, 2023, EXCEPT PERSONNEL SERVICES, AND GENERAL ADMINISTRATION AND SUPPORT UNDER MAINTENANCE AND OTHER OPERATING EXPENSES, AMENDING FOR THE PURPOSE SECTIONS 48 AND 67 OF THE GENERAL PROVISIONS OF THE BANGSAMORO AUTONOMY ACT NO. 23 OR FY 2022 GENERAL APPROPRIATIONS ACT OF THE BANGSAMORO

Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:

SECTION 1. Section 48 of the Bangsamoro Autonomy Act No. 23 is hereby amended to read as follows:

"Sec. 48. Cash Budgeting System. All appropriations in this Act, except Personnel Services and General Administration and Support under Maintenance and Other Operating Expenses, shall be available for release and disbursement for the purpose specified, and under the same general and special provisions applicable thereto, until December 31, 2023. While the amount appropriated herein, as share of the constituent LGUs on the income taxes collected within the BARMM shall be available for disbursement for the purpose until December 31, 2023.

After the end of the validity period, all unreleased appropriations shall lapse, while unexpended or undisbursed funds shall revert back to the Bangsamoro Treasury under a Special Fund for reappropriation in accordance with Section 19, Article XII, of Republic Act 11054. Ministries and Offices shall strictly observe the validity of appropriations and the reversion of funds.

For FY 2022, the appropriations for infrastructure capital outlays shall be valid for obligation until December 31, 2023, while the completion of construction, inspection, and payment shall be made not later than June 30, 2024. On the other hand, appropriations for MOOE and other capital outlays items shall be likewise valid for obligation until December 31, 2023, while delivery, inspection, and payment shall be made not later than March 31, 2024.

The appropriations for Personnel Services authorized in this Act shall be valid for obligation and disbursement only until December 31, 2022.

The MFBM is authorized to issue the necessary guidelines for the effective implementation of this Act."

SEC. 2. Section 67 of the Bangsamoro Autonomy Act No. 23 is hereby amended to read as follows:

"Sec. 67. Quarterly Financial and Physical Reports. Ministries and Offices shall submit quarterly reports on its financial and physical accomplishments, within thirty (30) days after the end of every quarter, through the following:

(a) Unified Reporting System (URS) or other electronic means for submission of reports;

(b) Hard copy submitted to the MFBM;

(c) Ministry or Office's website; and

A printed or electronic copy of the quarterly financial and physical reports shall be furnished to the Parliament and the Chairperson of the Committee on Finance, Budget, and Management.

The Ministry or Office concerned shall send written notice when said reports have been submitted or posted on its website to the MFBM and other offices where the submission of reports is required under existing laws, rules and regulations. The date of notice to said Ministries and Offices shall be considered the date of compliance with this requirement.

Failure to comply with any of the foregoing shall result in the automatic suspension of the salaries of the responsible official or employee until they have complied with the above requirements pursuant to Section 57, Chapter 6, Book VI of E.0. No. 292, as may be applicable, and existing laws and guidelines issued thereon.

Repeated failure or refusal of said official or employee to submit the above reports without any justifiable cause may be a ground for administrative disciplinary action, subject to pertinent civil service rules and regulations. The Minister or Head of Office shall be responsible for ensuring compliance with this penalty provision."

SEC. 3. Repealing Clause. – All laws, decrees, executive issuances, rules, and regulations inconsistent with this Act are hereby repealed or modified accordingly.

SEC. 4. ***Effectivity.*** – This Act shall take effect immediately after its publication in a newspaper of regional circulation in the Bangsamoro Autonomous Region.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Parliament on *Jumada Al-Awwal* 28, 1444/ December 22, 2022.

PROF. RABY B. ANGKAL
Secretary-General

APPROVED:

AHOD B. EBRAHIM
Chief Minister
Date: 06-19-1444 / 01-12-2023

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